No. 26-2126

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IN THE UNITED STATES COURT OF APPEALS

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FOR THE TENTH CIRCUIT

FOR THE TENTH CIRCUIT

UNITED STATES OF AMERICA,

UNITED STATES OF AMERICA,

Plaintiff-Appellant,

v.

Plaintiff-Appellant

MAGGIE TOULOUSE OLIVER, in her official capacity as Secretary of State of New Mexico,

v.

Defendant-Appellee,

MAGGIE TOULOUSE OLIVER, in her official capacity as Secretary of State of New Mexico,

NEW MEXICO ALLIANCE FOR RETIRED AMERICANS; COMMON CAUSE; CLAUDIA MEDINA; JUSTIN ALLEN,

Intervenors-Appellees.

Defendant-Appellee

NEW MEXICO ALLIANCE FOR RETIRED AMERICANS; COMMON CAUSE; CLAUDIA MEDINA; JUSTIN ALLEN,

On Appeal from the United States District Court for the District of New Mexico
D.C. No. 1:25-cv-1193-JCH-JFR; The Honorable Judith C. Herrera

Intervenors-Appellees

REPLY BRIEF FOR ~~THE UNITED STATES~~ AS APPELLANT

ON APPEAL FROM ~~THE UNITED STATES~~ DISTRICT COURT
FOR THE DISTRICT OF NEW MEXICO
The Honorable Judge Judith C. Herrera
D.C. No. 1:25-cv-1193-JCH-JFR

REPLY BRIEF FOR THE UNITED STATES AS APPELLANT

(See inside cover for continuation of cover page)

HARMEET K. DHILLON
Assistant Attorney General
ERIC A. SELL
Deputy Assistant Attorney General
ANDREW G. BRANNEN
DAVID N. GOLDMAN
MICHAEL T. HAYES
Attorneys
Department of Justice
Civil Rights Division, Appellate Section
Ben Franklin Station, P.O. Box 14403
Washington, D.C. 20044-4403
(202) 805-7671

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INTRODUCTION

Accurate voter rolls are an essential precondition for verifiable and trustworthy elections. The Department of Justice (DOJ) seeks to obtain New Mexico's statewide voter registration list (SVRL) to ensure that New Mexico is complying with federal law governing the maintenance of that list. The DOJ's request is a lawful exercise of its authority under Title III of the Civil Rights Act of 1960 (CRA), and it is made for the lawful purpose of ensuring New Mexico's compliance with the list-maintenance requirements of the National Voter Registration Act of 1993 (NVRA) and the Help America Vote Act of 2002 (HAVA). None of the arguments advanced by Secretary Toulouse Oliver, the New Mexico Alliance for Retired Americans, and Common Cause, Claudia Medina, and Justin Allen (collectively, defendants) support the district court's contrary conclusion.

ARGUMENT

I. The United States adequately stated the basis and purpose of its demand for New Mexico's SVRL.

A. Courts play a limited role in assessing the Attorney General's demand under Title III.

The federal court hearing on the DOJ's Section 303 demand is a "special statutory proceeding" not subject to the ordinary standards of Civil Procedure. *Kennedy v. Lynd*, 306 F.2d 222, 225-226 (5th Cir. 1962) (*Lynd II*). The Attorney General need only make a "simple statement" that the state election official against whom an order of reproduction is sought has "failed or refused to

the Federal Rules of Civil Procedure. *Kennedy v. Lynd*, 306 F.2d 222, 225-226 (5th Cir. 1962) (*Lynd II*). The Attorney General need only make a "simple statement" that the state election official against whom an order of reproduction is sought has "failed or refused to make such papers 'available for inspection, reproduction, and copying.'" *Id.* at 226 (quoting 52 U.S.C. 20703). Title III is satisfied so long as the Attorney General states in writing the basis and purpose of the demand, as happened here. U.S. Br. 15–31.[1]

Defendants argue that *United States v. Powell*, 379 U.S. 48 (1964), requires the ordinary application of those Rules and the factual scrutiny that accompanies a Federal Rule of Civil Procedure 12(b)(6) motion. Sec'y Br. 11–16; Alliance Br. 18. But *Powell* involved an Internal Revenue Service (IRS) summons served on a taxpayer, and it authorized judicial inquiry only because Section 7605(b) of the Internal Revenue Code (IRC) prohibited the IRS from subjecting a taxpayer "to unnecessary examination or investigations," *Powell*, 379 U.S. at 57 (quoting 26 U.S.C. 7605(b)), and limited the IRS to documents "relevant or material" to its inquiry. 26 U.S.C. 7602(a)(1). The CRA contains no comparable textual limitation on the

[1] "JA," refers to the Joint Appendix filed in this appeal. "Sec'y Br.," "Alliance Br.," and "Common Cause Br." refer, respectively, to the principal briefs filed by Secretary Toulouse Oliver, the New Mexico Alliance for Retired Americans, and Common Cause, Claudia Medina, and Justin Allen. "U.S. Br." refers to the United States' opening brief. "DNC Br." and "EPIC Br." refer, respectively, to the amicus briefs filed by the Democratic National Committee and Electronic Privacy Information Center.

coverage. Alliance Br. 20 (quoting *Lynd II*, 306 F.2d at 226). But that unremarkable observation—which the United States does not dispute, *see* Argument II, *infra*—says nothing about whether the district court may examine the factual sufficiency of the Attorney General's stated basis and purpose. It may not. *Lynd II*, 306 F.2d at 226. Nor does *Lynd II*'s further observation that the Attorney General there demanded "unnecessary").

"public records which ought ordinarily to be open to legitimate reasonable inspection," as opposed to "confidential, private papers and effects," *id.* at 231, describe the outer boundary of Title III's coverage. *Contra* Sec'y Br. 39-40. In *Lynd II*, the court was explaining why the delay in permitting inspection was unwarranted given the nature of the records at issue. *Lynd II*, 306 F.2d at 230-231. Were Title III limited to "public records" containing no sensitive information, its own confidentiality provision, 52 U.S.C. 20704, would serve no purpose.

Defendants also argue that the Federal Rules apply by default to a proceeding to compel production via the Attorney General's written demand. Sec'y Br. 13; Alliance Br. 18. But that rule yields when the procedural requirements are "otherwise provided by statute." Fed. R. Civ. P. 81(a)(5). And the Supreme Court has held that even when the Federal

Attorney General's authority to compel production of covered records. U.S. Br. 15–19. Defendants respond that *Powell* controls anyway because the CRA, like the IRC, authorizes enforcement "by appropriate process," 52 U.S.C. 20705, without specifying a particular procedure. Sec'y Br. 13. That does not follow: the IRC's "relevant or material" and "necessary" limitations have no CRA analogue. *Cf.* *Powell*, 379 U.S. at 53 (explaining what would render an investigation "unnecessary").

Lynd II, on the other hand, is directly on point. U.S. Br. 16–18. To be sure, *Lynd II* left courts "open for determination" where there is "a genuine dispute" whether a particular record falls within the CRA's coverage. Alliance Br. 20 (quoting *Lynd II*, 306 F.2d at 226). But that unremarkable observation—which the United States does not dispute, *see* Argument II, *infra*—says nothing about whether the district court may examine the factual sufficiency of the Attorney General's stated basis and purpose. It may not. *Lynd II*, 306 F.2d at 226. Nor does *Lynd II*'s further observation that the Attorney General there demanded "public records which ought ordinarily to be open to legitimate reasonable inspection," as opposed to "confidential, private papers and effects," *id.* at 231, describe the outer boundary of Title III's coverage. In *Lynd II*, the court was explaining why the delay in permitting inspection was unwarranted given the nature of the records at issue. *Lynd II*, 306 F.2d at 230–231. Were Title III limited to "public records" containing

no sensitive information; its own confidentiality provision, 52 U.S.C. 20704, would serve no purpose.

Rules "have an application to a summons proceeding," they "are not inflexible in this application" and should not be read to "impair a summary enforcement proceeding so long as the rights of the party summoned are protected and an adversary hearing, if requested, is made available." *Donaldson v. United States*, 400 U.S. 517, 528–529 (1971). Section 305's summary procedure, combined with the absence of any textual standard against which to judge the demand, confirms that there are no grounds for subjecting the basis and purpose of a Section 303 demand to judicial scrutiny. *See generally United States v. Benson*, 187 F.4th 462, 479–480 (6th Cir. 2026) (*Benson III*) (Thapar, J., dissenting).

Defendants also argue that the Federal Rules apply by default to a proceeding to compel production via the Attorney General's written demand. Sec'y Br. 13; Alliance Br. 18. But that rule yields when the procedural requirements are "otherwise provided by statute." Fed. R. Civ. P. 81(a)(5). And the Supreme Court *superseded by statute on other grounds*, Tax Reform Act of 1976, Pub. L. No. 94-455, 90 Stat. 1520. Section 305's summary procedure, combined with the absence of any textual standard against which to judge the demand, confirms that there are no grounds for subjecting the basis and purpose of a Section 303 demand to judicial scrutiny. *See generally United States v. Benson*, 187 F.4th 462, 479–480 (6th Cir. 2026) (*Benson III*) (Thapar, J., dissenting).

B. The United States stated an adequate "basis" for its demand.

Defendants defend the district court's holding that the September 8, 2025, letter (September 8 Letter) "altogether lacks an identifiable 'basis'" because it did not "articulate any factual suggestion that New Mexico has violated the NVRA or HAVA" or point to "statistical anomalies within New Mexico's voter registration data." JA Vol. II at 490-491; Sec'y Br. 17-20; Alliance Br. 21-22. That defense fails. Title III

data." JA Vol. II at 490–491; Sec'y Br. 17–20; Alliance Br. 21–22. That defense does not require a factual predicate of that kind; nevertheless, the letter supplied one.

fails. Title III does not require a factual predicate of that kind; nevertheless, the letter supplied one.

Defendants insist that "the basis" of a Section 303 demand must be a discrete factual predicate, distinct from "the purpose," or else "basis" becomes surplusage. Sec'y Br. 17-18; Alliance Br. 21-22. Nothing in the statute's text indicates that the "basis" of a Section 303 demand must be a *factual* basis. Rather, definitions of the terms "basis" and "purpose" indicate that the purpose of a Section 303 request is its reason, end, or intent, while its basis is its justificatory principle. *See Webster's New World Dictionary of the American Language* 112, 1182 (8th coll. ed. 1960) (*Webster's New World*) (defining "purpose" as the "intent, aim, or object of an act," and "basis" as the "chief supporting factor" and "the basic principle or theory"). A "basis" need not be factual—it must only be foundational.

Defendants insist that "the basis" of a Section 303 demand must be a discrete factual predicate, distinct from "the purpose," or else "basis" becomes surplusage. Sec'y Br. 17–18; Alliance Br. 21–22. Nothing in the statute's text indicates that the "basis" of a Section 303 demand must be a factual basis. Rather, definitions of the terms "basis" and "purpose" indicate that the purpose of a Section 303 request is its reason, end, or intent, while its basis is its justificatory principle. *See* Webster's New World Dictionary of the American Language 112, 1182 (8th coll. ed. 1960) (defining "purpose" as the "intent, aim, or object of an act," and "basis" as the "chief supporting factor" and "the basic principle or theory"). A "basis" need not be factual—it must only be foundational.

Legal usage elsewhere bears this out. *See Taylor v. Freeland & Kronz*, 503 U.S. 638, 641 (1992) (holding that there was "no statutory basis" for a debtor's attempt to shield lawsuit proceeds from creditors (citation omitted)); *Loper Bright Enters. v. Raimondo*, 603 U.S. 369, 389 (2024) (describing its review of National Labor Relation Board conduct as limited to assessing whether its determination had a "reasonable basis in law" (emphasis added; citation omitted)). Indeed, this Court frequently examines whether a prison sentence is "based on" specific legal authority, *i.e.*, the Sentencing Guidelines. *See, e.g.*, *United States v. Jordan*, 853

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as limited to assessing whether its determination had a "reasonable *basis in law*" (emphasis added; citation omitted)). Indeed, this Court frequently examines whether a prison sentence is "based on" specific *legal* authority, *i.e.*, the Sentencing Guidelines. *See, e.g.*, *United States v. Jordan*, 853 F.3d 1334, 1339 (10th Cir. 2017) (noting that sentence imposed under a plea agreement is "based on" the Guidelines if, *inter alia*, the agreement is clear that "the basis for the specified term is a[n applicable] Guidelines sentence range" (emphasis added; citations omitted)).

This approach tracks the legislative history: the "basis and purpose" requirement gives the recipient notice both "as to why such an inspection was being made" (*i.e.*, the "purpose" or reason), and "what law or what constitutional provision, right, or immunity might be involved" (*i.e.*, the basis, or underlying principle behind the request). 106 Cong. Rec. 6392 (1960) (statement of Rep. Cramer); *see also* 106 Cong. Rec. 7767 (1960) (statement of Sen. Keating) (stating that the Attorney General need only "identify in a general way" the reasons for the demand).

But even accepting defendants' factual-predicate theory, the September 8 letter supplied one. The letter "concern[ed New Mexico's] compliance with the statewide voter registration list maintenance provisions" of the NVRA and HAVA (JA Vol. I at 50), and it invoked the Attorney General's Section 303 authority to assess that compliance (JA Vol. I at 50–51). A State's federally enforceable list-maintenance obligations under HAVA and the NVRA are themselves a "basis" for inquiry no less than a citation to statistical anomalies would be.

Defendants respond that the United States cannot point to the Election Assistance Commission's 2024 Election Administration and Voting Survey (EAVS)

provisions" of the NVRA and HAVA (JA Vol. I at 50), and it invoked the Attorney General's Section 303 authority to assess that compliance (JA Vol. I at 50-51). A State's federally enforceable list-maintenance obligations under HAVA and the NVRA are themselves a "basis" for inquiry no less than a citation to statistical anomalies would be.

Defendants respond that the United States cannot point to the Election Assistance Commission's 2024 Election Administration and Voting Survey (EAVS) report because it was not cited in the letter. Sec'y Br. 19-20. The United States does not ask this Court to treat the EAVS report as an unstated, after-the-fact rationale. Rather, the EAVS report is simply additional context for a basis the letter itself already supplied in full: New Mexico's obligation to maintain an accurate SVRL under the NVRA and HAVA. Nothing in Section 303 requires the Attorney General to recite all information informing a demand, so long as the letter itself states its basis. *See, e.g.*, *Lynd II*, 306 F.2d at 229 n.6 (addressing a demand's "basis" that did not spell out what "information in the possession of the Attorney General tend[ed] to show" racial discrimination (citation omitted)). This one did. And federal agencies generally may "investigate merely on suspicion that the law is being

report because it was not cited in the letter. Sec'y Br. 19–20. The United States does not ask this Court to treat the EAVS report as an unstated, after-the-fact rationale. Rather, the EAVS report is simply additional context for a basis the letter itself already supplied in full: New Mexico's obligation to maintain an accurate SVRL under the NVRA and HAVA. Nothing in Section 303 requires the Attorney General to recite all information informing a demand, so long as the letter itself states its basis. See, e.g., *Lynd II*, 306 F.2d at 229 n.6 (addressing a demand's "basis" that did not spell out what "information in the possession of the Attorney General tend[ed] to show" racial discrimination (citation omitted)). This one did. And federal agencies generally may "investigate merely on suspicion that the law is being violated, or even just because [they] want[] assurance that it is not." *United States v. Morton Salt Co.*, 338 U.S. 632, 642–643 (1950).

CONCLUSION

This Court should reverse.

CONCLUSION

Respectfully submitted,

This Court should reverse.

s/ Michael T. Hayes
MICHAEL T. HAYES
Attorney
Department of Justice
Civil Rights Division, Appellate Section
Ben Franklin Station, P.O. Box 14403
Washington, D.C. 20044-4403
(202) 805-7671
michael.hayes6@usdoj.gov

Respectfully submitted,

HARMEET K. DHILLON
Assistant Attorney General

ERIC A. SELL
Deputy Assistant Attorney General

s/ Michael T. Hayes
ANDREW G. BRANIFF
DAVID N. GOLDMAN
MICHAEL T. HAYES
Attorneys
Department of Justice
Civil Rights Division
Appellate Section
Ben Franklin Station
P.O. Box 14403
Washington, D.C. 20044-4403
(202) 805-7671
michael.hayes6@usdoj.gov

October 8, 2026

Date: October 8, 2026

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s/ Michael T. Hayes
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s/ Michael T. Hayes
MICHAEL T. HAYES
Attorney

Date: October 8, 2026

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s/ Michael T. Hayes
MICHAEL T. HAYES
Attorney

Date: October 8, 2026

CERTIFICATE OF SERVICE

I hereby certify that on October 8, 2026, pursuant to Fed. R. App. P. 25, I electronically filed the foregoing using the Court's CM/ECF system, which in turn caused electronic notification of filing to be sent to all counsel of record.

s/ Michael T. Hayes — October 8, 2026
Signature — Date